

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-____

Docket No. 3866

**PROPOSED RESPONDENTS' OPPOSED MOTION FOR LEAVE TO FILE ITS
REQUEST FOR 100-DAY PILOT PROGRAM DESIGNATION OUT OF TIME**

Proposed Respondents Ouraring Inc. and Oura Health Oy (“Oura”) respectfully moves to file out of time its Request for 100-Day Pilot Program Designation dated December 31, 2025, in *Certain Wearable Devices*, Docket No. 3866. On January 5, 2026, Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. indicated that they oppose this motion.

The December 17, 2025 notice in the Federal Register set forth the deadline to file written submissions on the public interest and written submissions on other issues by December 29, 2025. *See* EDIS Doc. ID 866747. On December 29, 2025, Oura timely filed its request that the Commission institute a 100-day proceeding on the economic prong of the domestic industry requirement and served the same on Complainants. On December 30, 2025, the Commission notified counsel for Oura that its request for a 100-day proceeding did not comply with the Commission’s requirement that such requests be double spaced and limited to five pages. On December 31, 2025, Oura re-filed its request (attached hereto as Attachment A) for a 100-day proceeding that complies with Commission Rule 210.8(c) and the Federal Register requirements and again served the same on Complainants.

Good cause for leave exists because the December 31 filing is substantively the same as Oura's December 29th filing rejected due to formatting issues.¹ The December 31 submission merely conforms the prior filing to the applicable formatting and page limits. Moreover, because Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. were timely served with Oura's initial filing on December 29, and replacement filing on December 31, granting Oura's request for leave will not harm or otherwise cause prejudice to Complainants.

Therefore, Oura respectfully requests that its motion be granted, and that its Request for 100-Day Pilot Program Designation be considered by the Commission.

¹ The rejected December 29th filing was five pages in length single spaced, whereas the December 31st filing (EDIS Doc. ID 867697) has been shortened to five pages double spaced without adding any new arguments, authorities, or evidence.

Dated: January 5, 2026

Respectfully submitted,

/s/ Jasjit S. Vidwan

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ATTACHMENT A

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December 31, 2025

BY EDIS AND HAND DELIVERY

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. International Trade Commission
500 E Street, S.W.
Washington, D.C. 20436

Re: *In the Matter of Certain Wearable Devices*, Docket No. 3866 – Request for 100-Day
Pilot Program Designation

Dear Secretary Barton:

On behalf of proposed Respondents Ouraring Inc. and Oura Health Oy (collectively, “Oura”), we write regarding a prominent issue that bears on the institution of the above-referenced investigation requested by Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, “Samsung”). Specifically, Samsung alleges an economic domestic industry exists based on its investments in “[c]ertain Samsung wearable devices and mobile devices.” *Certain Wearable Devices*, Docket No. 3866, Compl. (EDIS Doc. ID 866474) at ¶ 1 (pg. 12)¹ (Dec. 12, 2025) (hereinafter the “Complaint”). Should the Commission decide to institute an investigation, early resolution of the dispositive issue of Samsung’s purported economic investments supporting its domestic industry requirement would conserve Commission and party resources, making this proposed investigation an ideal candidate for the Commission’s Pilot

¹ Paragraph numbers begin anew on page 12 of the Complaint. Oura provides both paragraph numbers and pages numbers herein for clarity.

Program for Early Disposition of Certain Section 337 Investigations (“100-Day Pilot Program”).
(last visited December 29, 2025) (hereinafter “100-Day Program Press Announcement”).

I. Samsung’s Allegations Concerning the Economic Prong of the Domestic Industry Requirement Are Vague and Inconsistent, Warranting Early Disposition.²

Samsung’s Complaint lacks specificity as to what precisely Samsung contends constitutes the “Domestic Industry Products” and their corresponding economic activities. *See* Complaint at ¶¶ 1 (pg. 12), 7 (pg. 13). While Samsung defines the term “Domestic Industry Products” as being “[c]ertain Samsung wearable devices and mobile devices,” subsequent paragraphs describe the products alleged to practice the asserted patents differently. *See id.* at ¶¶ 2-5 (pgs. 12-13).

Specifically, for three asserted patents (’359, ’677, and ’675 patents), Samsung contends that the Samsung “Galaxy Smartwatches,” including “the Samsung Galaxy Watch 4, Galaxy Watch 5, Galaxy Watch 6, and Galaxy Watch 7,” and the Galaxy Ring practice at least one claim. *See id.* at ¶¶ 2-4 (pg. 12). But the confidential charts provided for each patent purportedly include only “the Samsung Galaxy Smartwatches”—excluding the Galaxy Ring and Samsung mobile devices. *See id.* (describing Confidential Exhibits 25-27). For the last asserted patent (’789 patent), Samsung alleges that “[c]ertain Samsung mobile devices, including for example, the Galaxy S25 smartphone, practices at least one claim.” *See id.* at ¶ 5 (pgs. 12-13). Here, Samsung’s Confidential Exhibit 28 purportedly includes only the Galaxy S25 product—excluding all Samsung Galaxy Smartwatches and the Galaxy Ring. *See id.* At best, Samsung alleges that its Galaxy Smartwatches

² Oura did not have the benefit of analyzing the confidential exhibits attached to the Complaint prior to sending this correspondence. Rather, Samsung hid its allegations of its “economic activities relating to the domestic industry products (economic prong)” behind the fully redacted declaration of Christopher Martinez. *See* Complaint at ¶ 7 (pg. 13) (citing Confidential Exhibit 11).

and Galaxy Ring are domestic industry products for three asserted patents whereas some of its mobile devices are domestic industry products for the remaining asserted patent. Accordingly, Oura would expect that Samsung's investments for economic domestic industry would be allocated accordingly. Not so.

Samsung's Complaint appears to rely on aggregated investments across a number of product lines without allocating specific investments to each subcategory. *See id.* at ¶ 7 (pg. 13) ("SEA employs hundreds of direct employees and contractors . . . for Samsung mobile products in the U.S., *including* the Galaxy Smartwatches and Galaxy smartphones."). The reason behind Samsung's vague statements that overinflate investments from other products is transparent: if only the investments related to domestic industry products are considered, its investments would not be significant or substantial.

But Samsung is "required to identify, in some manner, how much of its investment in each statutory category was attributable to each group of products." *Zircon Corp. v. Int'l Trade Comm'n*, 101 F.4th 817, 826 (Fed. Cir. 2024). Thus, any investments by Samsung towards other mobile products such as laptops, tablets, headphones, etc. that are not domestic industry products for the four asserted patents should be excluded in their entirety. And any purported investments in Samsung's Galaxy smartphones should be excluded from consideration for the three asserted patents ('359, '677, and '675 patents) that rely only on the Galaxy Smartwatches and the Galaxy Ring. *See* Complaint at ¶¶ 2-4 (pg. 12). Likewise, its investments in the Galaxy Smartwatches and Galaxy Ring should be excluded from the fourth asserted patent ('789 patent) that Samsung alleges is practiced only by the Samsung smartphone, not the Galaxy Smartwatches or the Galaxy Ring.

See id. at ¶ 5 (pg. 12). Even further, Samsung’s Complaint omits any purported domestic investments in its Galaxy Ring product.

As a complainant relying on its own investments, Samsung should be able to present a clear picture of the activities and investments that are alleged to establish a domestic industry. Samsung should not be permitted to artificially inflate the appearance of its domestic industry with respect to the asserted patents through the ambiguous inclusion of mobile devices only to develop and revise its core domestic industry theories post-institution to cure pleading deficiencies. Rather, the “relevant date at which to determine whether the domestic industry exists or is in the process of being established is the filing date of the complaint.” *See Certain Televisions, Remote Controls, & Components Thereof*, Inv. No. 337-TA-1263, Comm’n Op. at 20 (Nov. 30, 2022) (citing *Motiva, LLC v. Int’l Trade Comm’n*, 716 F.3d 596, 601 n.6 (Fed. Cir. 2013)).

While Samsung may tout significant investments in the United States, Samsung’s sheer size does not guarantee that Samsung has a domestic industry with respect to the patents it has asserted or the products it relies on. In fact, another Samsung entity recently failed to show a domestic industry exists where the relied upon domestic activities related to smartphone products that were ultimately held to not be “articles protected by the Asserted Patents.” *See Certain Active Matrix Organic Light-Emitting Diode Display Panels & Modules for Mobile Devices, & Components Thereof*, Inv. No. 337-TA-1351, Comm’n Op. at 31 (Apr. 9, 2025).³ Here, Samsung explicitly excludes smartphones from the list of articles protected by three of the asserted patents

³ More specifically, the ID and Commission on review determined that it was not appropriate to broaden the domestic industry beyond investments in AMOLED DI products to include investments in Galaxy (smartphone) DI products. *Id.* at 21-31. It appears that Samsung may be attempting to rely on the same impermissible broadening here.

and it appears that Samsung's reliance thereon with respect to the fourth patent may suffer from the same defect present in *Certain OLED Display Panels*. At a minimum, Samsung should be required to identify its domestic investments in its Galaxy Smartwatches and Galaxy Ring separate from each other and also apart from its smartphones and present them for consideration under the economic prong. The discovery needed to accurately assess Samsung's purported economic activities is not complex. Samsung is not relying on a licensee's activities to satisfy the domestic industry requirement. Rather, all information should be within Samsung's custody and control, and Samsung "should be prepared to prove its case." *See* 100-Day Program Press Announcement.

* * *

If the Commission elects to institute an investigation into the above-referenced matter, this investigation presents an ideal opportunity for the Commission to exercise the 100-Day Program to assess Samsung's alleged economic activities in each asserted patent. Such undertaking can streamline the investigation before the Commission and the parties expend substantial resources.

Additionally, if designated for the 100-Day Program, Oura would agree not to seek a stay of other aspects of the investigation, *e.g.*, technical prong discovery, invalidity, alleged infringement, importation, etc., ***unless and until*** "the ALJ issues an early ID finding that there is no domestic industry." *See* 100-Day Program Press Announcement (noting that such "action would stay the investigation pending Commission action"). This would be the least disruptive procedure while still potentially benefiting from the early disposition through the 100-Day Program.

Sincerely,

/s/ Jasjit S. Vidwan
Jasjit S. Vidwan

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **REQUEST FOR 100-DAY PILOT PROGRAM DESIGNATION** was served upon the following as indicated below on December 31, 2025:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, DC 20006 Telephone: (202) 383-5300 Facsimile: (202) 383-5414	Via email: dstrainor@omm.com

/s/ Jasjit S. Vidwan
Jasjit S. Vidwan

*Counsel for proposed Respondents
Ouraring Inc. and Oura Health Oy*

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I hereby certify that a copy of the foregoing **OPPOSED MOTION FOR LEAVE TO FILE 100-DAY REQUEST LETTER OUT OF TIME** was served upon the following as indicated below on January 5, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, DC 20006 Telephone: (202) 383-5300 Facsimile: (202) 383-5414	Via email: dstrainor@omm.com

/s/ Jasjit S. Vidwan
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